



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-24-96 | Ridgeview Apartments – Phase 2 – Assigned Zoning
Date: August 12, 2024

Background:

The item for consideration is an Assigned Zoning. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 8/12/2024
- Public Services Committee 8/20/2024
- Second reading 8/26/2024
- Public Services Committee 9/4/2024
- Third and final reading 9/9/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their August 5, 2024 meeting and unanimously recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Related Items:

- PUDC-24-96: Annexation
- PUDC-24-97: Zoning Map Amendment

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE ESTABLISHING THE ZONING CLASSIFICATION OF AG AGRICULTURAL FOR LAND ANNEXED TO THE CITY OF CHEYENNE LOCATED WEST OF CONVERSE AVENUE AND NORTH OF DELL RANGE BOULEVARD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. Kipling Sheppard and Jarom Johnson, owners of:

A tract of land situate in a portion of the East Half of Section 20, T14N, R66W, 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at the Northwest corner of that parcel described in Book 2812, Page 889, from which the East Quarter corner of Section 20 bears S81° 02' 23"E, a distance of 1475.90 feet; thence along the West lines of said Book 2812, Page 889 for the following 2 courses; thence S23° 01' 39"W, a distance of 80.00 feet; thence S00° 00' 00"E, a distance of 934.57 feet; thence S90° 00' 00"W, a distance of 101.73 feet; thence N00° 00' 00" E, a distance of 977.81 feet; thence N23° 01' 39"E, a distance of 80.00 feet; thence S66° 58' 21"E, a distance of 110.54 feet to the Point of Beginning. Containing 2.44 acres, more or less.

A tract of land situate in a portion of the East Half of Section 20, T14N, R66W, 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at the Northwest corner of that parcel described in Book 2494, Page 445, from which the East Quarter corner of Section 20 bears S84° 01' 08" E, a distance of 1223.73 feet; thence along the West and South lines of said Book 2494, Page 445 for the following 3 courses; thence S23° 01' 39" W, a distance of 80.00 feet; thence S00° 00' 00" E, a distance of 709.04 feet; thence N90° 00' 00" E, a distance of 48.00 feet to the West line of Scenic Development, 4th Filing; thence S00° 00' 00" W, along said West line, a distance of 123.17 feet; thence S90° 00' 00" W, a distance of 288.82 feet; thence N00° 00' 00" E, a distance of 934.57 feet; thence N23° 01' 39" E, a distance of 80.00 feet; thence S66° 58' 21" E, a distance of 261.67 feet to the Point of Beginning. Containing 5.50 acres, more or less.

A Parcel Of Land Situated In A Portion Of Section 20, Township 14 North, Range 66 West Of The Sixth Principal Meridian, Said Parcel Being Along The West Boundary Of The 'Scenic Development Third Filing', A Replat Of Lots 1-3, Block 1 Of Scenic Development 2nd Filing, Being More Particularly Described As Follows:

Commencing At A Point Where The Southwest Right Of Way Of Converse Avenue Intersects The West Boundary Of 'Century West Fifth Filing', Said Point Being Monumented By A Found Aluminum Cap P.L.S. 2927, And Running Thence, North 54°59'22" West, A Distance Of 1428.78 Feet To A Point On The North Right Of Way Line Of East Carlson Street Monumented By A 1-1/2" Aluminum Cap Stamped Avi 12045, And The Point Of Beginning For This Description; Thence, Along The Westerly Boundary Of Said 'Scenic Development Third Filing', The Following (2) Courses: (1) Thence S23°01'39"W A Distance Of 80.00 Feet; (2) Thence South A Distance Of 688.64 Feet; Thence West A Distance Of 48.00 Feet; Thence North A Distance Of 709.04 Feet; Thence N23°01'39"E A Distance Of 80.00 Feet; Thence S66°58'21"E A Distance Of 52.16 Feet To The Point Of Beginning. Said Parcel Contains 0.866 Acres, more or less.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof.

Section 2. That Section 2.2.8 of the UDC provides standards and procedures for zoning districts established on land or property currently without a City zone assignment including land being annexed to the city.

Section 3. That on August 5, 2024, the City of Cheyenne Planning Commission conducted public hearings, reviewed the proposed zoning assignment that is the subject of this ordinance, and recommended approval of said zoning assignment.

Section 4. That the Governing Body of the City of Cheyenne finds that the zoning assignment that is the subject of this ordinance meets the criteria specified in Section 2.2.8.d of the UDC.

Section 5. That in accordance with Section 2.2.8, Assigned Zoning, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the zoning classifications of the real property as described in Section 1 is hereby established as AG Agricultural.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 5 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication, and upon approval and publication of the affiliated annexation.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

AUGUST 5, 2024

STAFF REPORT

FILE: PUDC-24-96: Ridge View Apartments Phase 2 – Assigned Zoning

LOCATION: West of Converse Avenue and North of Dell Range Boulevard.

REQUEST: Assigning the AG zone to a property that has petitioned for annexation.

ANNEXATION APPLICANT: Kelly Hafner

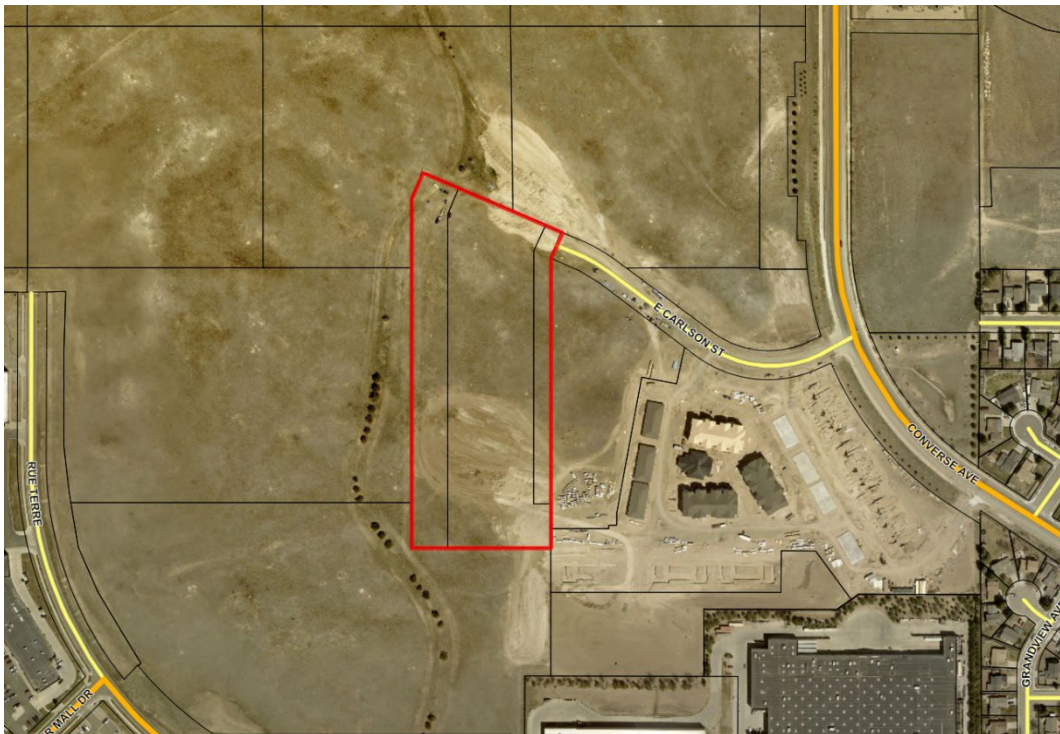
OWNER: Kipling Sheppard and WPP Thomas Ranch LLC

ZONING: County A-1

FUTURE LAND USE: Mixed-use Commercial

PURPOSE: To establish City zoning district concurrent with annexation.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the assigned zoning for land west of Converse Avenue and north of Dell Range Boulevard to AG Agricultural as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.8 Assigned Zoning

BACKGROUND:

The applicant has petitioned for land west of Converse Avenue and north of Dell Range Boulevard to be annexed into city limits. Annexation of a parcel requires a city zone to be established. Per UDC 2.2.8 a zone will be assigned based on the underlying county zone and per the policy document adopted by the city. Should the applicant wish to have a different zone at the time of annexation, they will be required to submit a subsequent zoning map amendment, proposing a different zone. The applicant is requesting a different City zone. The applicant is requesting a zone change to NR3-Nieghborhood Residential – High Density.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1) **The assigned zone is the most analogous City zone to the current zone when considering allowed uses. Zoning for standard County zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis. (UDC 2.2.8.d.1)**

The underlying county zone is A-1 Agricultural and Rural Residential. The most analogous city zone is AG Agricultural according to the policy document. The Assigned Zoning policy document is attached to the staff report as attachment number two.

Establishment of the City zone matches the policy document; therefore, the item **complies** with review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.8.(d).

ALTERNATIVES:

1. Recommend approval of the Assigned Zoning as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Assigned Zoning subject to conditions or modifications.

3. Recommend denial of the Assigned Zoning based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Assigned Zoning until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

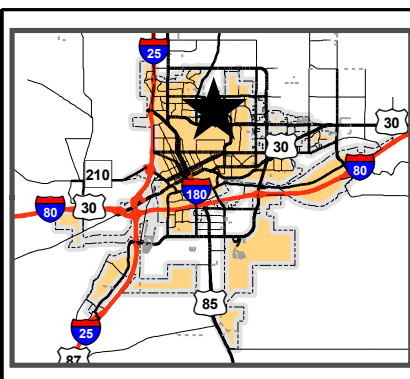
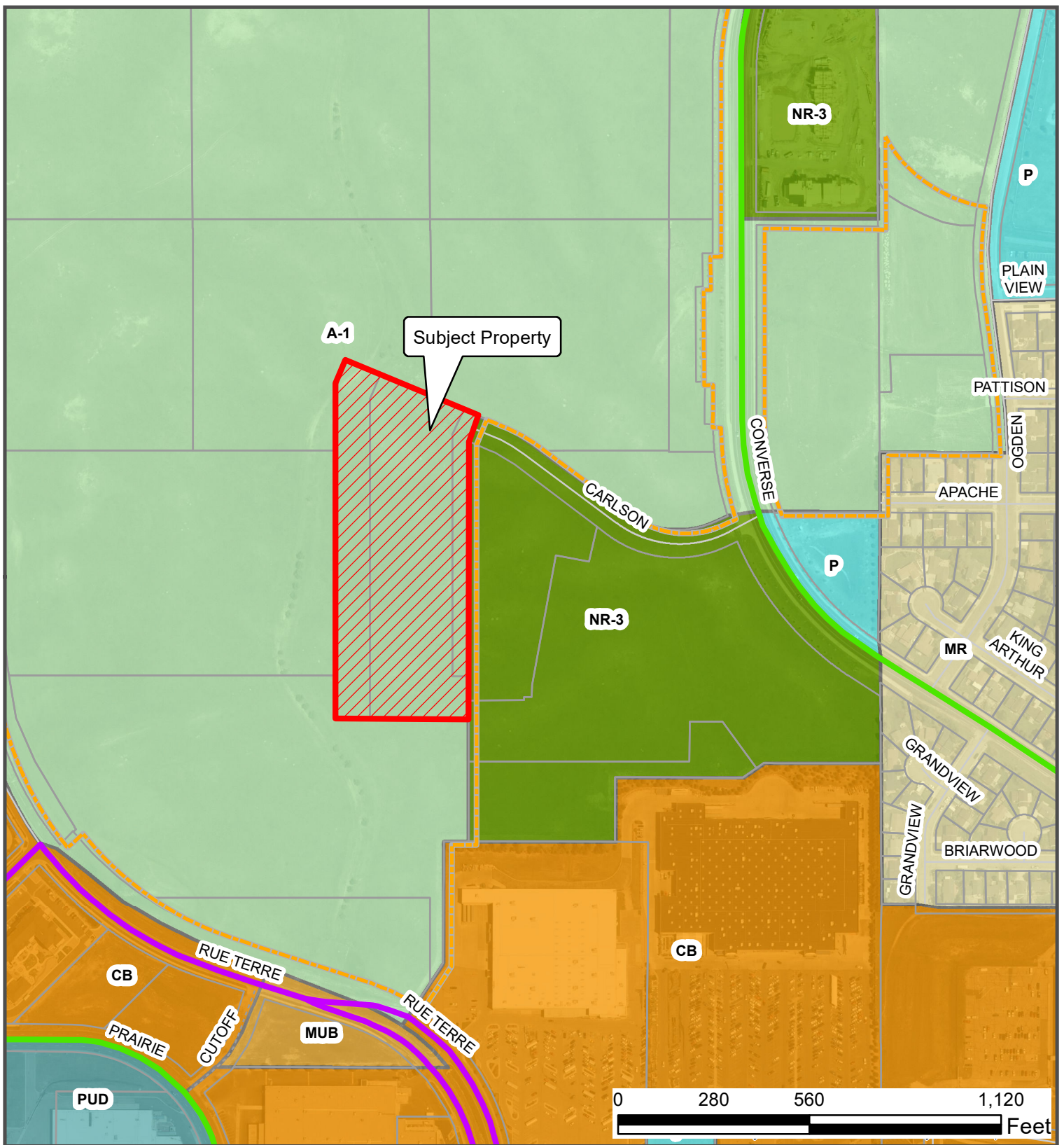
If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

STAFF RECOMMENDATION:

Staff recommends approval of the assigned zoning for land west of Converse Avenue and north of Dell Range Boulevard to AG Agricultural as shown in the attached zone change map, noting that the project meets the review criteria for approval.

ATTACHMENTS:

1. Zoning Map
2. Assigned Zoning Policy Document
3. Use Differences



Attachment 1: Zoning Map PUDC-24-96

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



City of Cheyenne

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Assigned Zone Chart

Underlying County Zone	Analagous City Zone
AR - Agricultural Residential	AR - Agricultural Residential
A1 - Agricultural and Rural Residential	AG - Agriculture
A2 - Agricultural	AG - Agriculture
LR - Low Density Residential	LR - Low Density Residential
MR - Medium Density Residential	MR - Medium Density Residential
HR - High Density Residential	HR - High Density Residential
NB - Neighborhood Business	NB - Neighborhood Business
CB - Community Business	CB - Community Business
LI - Light Industrial	LI - Light Industrial
HI - Heavy Industrial	HI - Heavy Industrial
P - Public	P - Public
MU - Mixed Use	MUR - Mixed-use Residential
Zone not listed above	Based on existing uses

City AG - AGRICULTURAL
<i>Uses By Right</i>
Detached Dwelling
Animal Care - Kennel
Child Care, In Home - Minor
Lodging, Bed and Breakfast
Home occupations
General Agriculture
Limited Agriculture
Nurseries, landscaping
<i>Uses requiring Administrative approval</i>
Accessory Dwelling
Cemeteries
Child Care, In Home - Major
Child Care, Center - Minor
<i>Uses requiring Board Approval (Conditional Use)</i>
Neighborhood Assembly (<350 maximum occupancy)
Primary and secondary schools
Assisted Living / Nursing Home
Animal Care – Hospital / Clinic
Child Care, Center - Major
Entertainment, Outdoor Recreation Facility
Entertainment, Venue (1000+ maximum occupancy)
Entertainment, Amusement, Recreation—Other
Agricultural equipment or product sales
Commercial stables, arenas, and show barns

County A1 - AGRICULTURAL AND RURAL RESIDENTIAL
<i>Uses By Right</i>
Agriculture and uses incidental to an agricultural operation
Family child care home
Family child care centers
Home occupations
Single-family residential
Small Wind Energy Systems
Animal hospitals or clinics
Bed and breakfasts
Cemeteries
Churches, temples or other places of worship
Duplexes
Primary and secondary Schools
Roadside farm stands
Accessory living quarters
<i>Uses requiring Board Approval (Conditional Use)</i>
Commercial sales of agricultural related products, not including fuel or
Work camps
Any other similar use
Commercial stables, arenas, kennels, bird farms and show barns
Commercial nurseries and landscaping businesses